

Calendar Line 1

Case Name: In the Matter of THE ESTATE OF RONALD CANAVERO

Case No.: 25PR200972

INTRODUCTION

Ronald Canavero (“Decedent”) passed away on February 15, 2025. On September 25, 2025, Donna Lynn Hickey-Mueller (“Petitioner”), a friend of Decedent’s, filed a petition for probate of a will executed by Decedent before his death. The petition attached both the will and a codicil, which Petitioner asserted was invalid. Via written order signed November 19, 2025 and filed December 8, 2025, the Court (Hon. Lê Jacqueline Duong) admitted the will to probate but not the codicil. Petitioner was named executor of the estate.

Currently before the Court is a motion by Yvonne Warren (“Warren”), a purported beneficiary under the codicil, to set aside the order admitting the will to probate. Petitioner has opposed the motion and Warren has filed a reply.¹

DISCUSSION

I. Requests for Judicial Notice

Warren requests judicial notice of: (1) Petitioner’s petition for probate filed September 25, 2025, (2) the notice of petition to administer estate filed September 25, 2025, (3) the notice of petition to administer estate filed October 5, 2025, (4) the amended notice of petition to administer estate filed November 7, 2025, (5) the proposed order marked e-received on September 25, 2025,² and (6) the order for probate filed December 8, 2025. The request for

¹ In the reply, which was filed late, Warren contends that the opposition was served late. Petitioner’s proof of service indicates that the opposition was served via U.S. mail on July 29, 2026. Warren contends that the opposition arrived bearing a stamp stating August 6, 2026. She provides a photograph of an envelope bearing the address of her counsel’s law firm with no other markings. Even assuming the opposition was served late, Petitioner was able to file a reply. Accordingly, the Court will consider both the opposition and the reply. (Cal. Rules Ct., rule 3.1300(d); *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.) Both parties are admonished to timely file and serve all motion-related documents within the timeframes stated in Code of Civil Procedure section 1005, subdivision (b).

² The Court notes that the “proposed order” attached to Warren’s request for judicial notice is only the proposed order coversheet, the actual proposed order is not attached.

judicial notice is GRANTED. (See Evid. Code, § 452, subd. (d).) However, due to discrepancies between the documents attached to the request for judicial notice and the version of those same documents filed with the Court, the Court will take judicial notice of the version of the documents filed with the Court.³

Petitioner requests judicial notice of: (1) Petitioner’s petition for probate filed September 25, 2025, (2) the notice of petition to administer estate filed September 25, 2025, (3) the order for probate filed December 8, 2025, (4) the proof of publication filed October 23, 2025, (5) the amended notice of petition to administer estate filed November 7, 2025. The request for judicial notice is GRANTED. (See Evid. Code, § 452, subd. (d).)

II. Legal Background

Warren seeks to set aside the order for probate filed December 8, 2025 under Code of Civil Procedure section 473, subdivision (b).⁴ Section 473, subdivision (b) provides for a motion to set aside to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” That section provides that an “[a]pplication for this relief . . . shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (§ 473, subd. (b).)

III. Merits of the Motion

Warren contends that the Court should set aside the order for probate because the address Petitioner used to serve her with notice of the petition for probate was incorrect. Moreover, she contends that the six-month deadline under section 473, subdivision (b) does not apply due to extrinsic fraud or mistake, namely the attempt to serve her at a partially incorrect address.

³ Warren appears to have obtained file-stamped PDF copies of the documents and then printed and photographed them, producing PDF versions of those documents with some of the original pages omitted.

⁴ All further undesignated statutory references are to the Code of Civil Procedure.

“Relief on the ground of extrinsic fraud or mistake is not available to a party if that party has been given notice of an action yet fails to appear, without having been prevented from participating in the action. [Citation.] To set aside a judgment based upon extrinsic mistake one must satisfy three elements. First, the defaulted party must demonstrate that it has a meritorious case. Second[], the party seeking to set aside the default must articulate a satisfactory excuse for not presenting a defense to the original action. Last[], the moving party must demonstrate diligence in seeking to set aside the default once ... discovered.’ [Citation.] [Citation.]” (*Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 503.) Here, not only was Warren aware of the probate proceedings at the time the challenged order was made, she has failed to meet a single one of these elements.

Warren has provided a declaration indicating that she never received any notices or court paperwork from Petitioner or her attorney. (Declaration of Yvonne Warren in Support of Motion (“Warren Decl.”), ¶ 7.) She maintains that her address is 390 N. Winchester Blvd., #1-5N, Santa Clara, not 390 N. Winchester Blvd., #1-FN, Santa Clara, which is listed on two of the notices of the November 19, 2025 hearing. (*Id.* at ¶ 8.) She contends that she “managed to track down” Petitioner’s attorney in March 2026. (*Id.* at ¶ 9.) The notices filed September 25, 2025 and October 8, 2025 both list Warren’s address as 390 N. Winchester Blvd., #1-FN, Santa Clara. The November 7, 2025 notice lists Warren’s address as 390 N. Winchester Blvd., Santa Clara, which Warren now contends is incorrect.

But Petitioner presents evidence establishing that Warren was in contact with Petitioner’s counsel and aware of the probate proceedings as early as November 5, 2025, when Warren emailed Petitioner’s counsel informing her that Warren’s address on the petition for probate was incorrect. (See Declaration of Attorney Nadya M. Machrus, ¶¶ 4-5, Ex. 1.) The corrected address she provided, 390 N. Winchester Blvd., Santa Clara, is the same address listed on the November 7, 2025 notice. (See *id.* at Ex. 1, November 7, 2025 Notice.) Counsel declares that she then sent the documents to Warren at the 390 N. Winchester Blvd., Santa Clara address (i.e., the address provided by Warren) and she emailed Warren to inform her of same. (*Id.* at ¶ 6, Ex. 1.) Thereafter, during March of 2026, within six months of the issuance of the order for probate,

Petitioner's counsel informed Warren via email, in response to an email from Warren, that the Court had admitted only the will and not the codicil to probate. (*Id.* at ¶¶ 8-9.)

Petitioner's showing establishes not only that Petitioner served Warren with the petition and notice of the hearing on the petition *at the address provided by Warren* but also that Warren was fully aware of the probate proceedings prior to the issuance of the order for probate. Warren complains that the November 7, 2025 notice provided less than 15 days' notice prior to the hearing date of November 19, 2025. But if Warren never received the notice, as she claims, the provision of less than 15 days' notice is of no moment. Additionally, Petitioner's counsel emailed Warren to inform her that counsel re-sent the documents to the address Warren provided. If Warren did not thereafter receive the documents, she could have followed up with counsel and requested that they be sent again. Again, Warren was aware that Petitioner had used an incorrect address for service, the alleged extrinsic fraud or mistake she complains of, as early as November 2025. Moreover, after Petitioner's counsel informed Warren in March 2026 that the Court had not admitted the codicil to probate, Warren did not file the instant motion until July 14, 2026, more than three months later and outside the six month period to set aside an order under section 473, subdivision (b). Accordingly, Warren has not shown diligence. (See *De Mello v. Souza* (1973) 36 Cal.App.3d 79, 86 [failure to correct error within relevant time period when error was known within relevant time period to correct error shows lack of diligence].)

As to whether Warren has a meritorious case, Warren has filed a proposed opposition to the petition for probate, attached at the end of her memorandum of points and authorities. In it, she makes no argument regarding how the codicil is valid. Instead, she repeats the argument that she did not hear from Petitioner's counsel until March 2026, which the evidence above establishes is incorrect.

Moreover, Warren asserts in her proposed opposition that, at the November 19, 2025 hearing on the petition, Petitioner changed the request in her petition from a request to probate the will and the codicil to a request to probate only the will. Not so. The petition for probate filed with the Court on September 25, 2025 indicates that the codicil is invalid in attachment 3(f)(2). Curiously, the version of the petition attached to Warren's request for judicial notice does not

include attachment 3(f)(2). Warren does not indicate where the version of the petition she attached to her request for judicial notice came from, nor does she make any attempt to authenticate it. It bears an electronic filing stamp and thus should mirror the version of the petition filed with the court, which includes attachment 3(f)(2).⁵ Indeed, the proposed order filed contemporaneously with the petition expressly indicates that Petitioner was seeking only probate of the will. But the text of the proposed order was also conspicuously omitted from Warren's request for judicial notice of the proposed order as discussed above. This begins to move Warren's requests for judicial notice from curious to suspicious. Finally, Petitioner's counsel, who was actually present at the hearing, declares that the Court found the codicil invalid and offered counsel the opportunity to continue the matter or withdraw any request to probate the codicil and, since counsel believed the codicil was invalid, he did not seek to probate the codicil. (Declaration of Attorney Geoffrey E. Wiggs, ¶¶ 7-11.) Accordingly, the motion and the proposed opposition are both without merit.

CONCLUSION

The motion is DENIED.

The Court will prepare the final order.

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⁵ Warren declares under penalty of perjury that she never received any documents from Petitioner or Petitioner's counsel, thereby foreclosing any argument that Petitioner committed fraud by omitting attachment 3(f)(2). (See Warren Decl., ¶ 7.)